جامعة خليفة
Khalifa University

Contract No: C305/P0000/2019/ZAK

For

Ladies Salon and Spa Services at KU Main Campus

Between

Khalifa University of Science and Technology

And

Oriental Wellness Spa LLC

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1. Contract Parties

This CONTRACT is made on the 23 July 2019, BETWEEN:

Khalifa University of Science and Technology

Represented by:
Dr. Arif Sultan Al Hammadi
Executive Vice President

Address:
United Arab Emirates, Abu Dhabi
P.O. Box: 127788
Tel: 02 401 8000
Fax: 02 447 2447

Hereinafter called "First Party" or "University" on one part,

AND

Oriental Wellness Spa LLC.
Represented by:
Ms. Meera Mohamed Al Suwaidi
Managing Partner

Address:
United Arab Emirates, Khalifa City,
Abu Dhabi
P.O. Box: 51622
Tel: 02 025556999
Web: www.orientalspauae.ae

Hereinafter called "Second Party" or "Contractor" on the other part.

2. Summary

NOW THIS CONTRACT WITNESSES AS FOLLOWS:

WHEREAS the First Party who is the owner and operator of an educational institution located in Abu Dhabi is desirous of having a Contract for "Ladies Salon and Spa at KUM Main Campus" by the above named Second Party who is a Salon and Spa firm to provide the services specified in the Tender No. KU/AD/323/2019.

a) Second Party submitted proposal on 08 October 2018 with against the tender no. KU/AD/323/2019 and subsequent clarification dated 0 July 2019 and 08 August 2019 has awarded the subject Contract.

b) First Party requires the Services set out in Article 8 (Scope of Services) hereunder to be executed.

c) Second Party declared that it has the manpower, finance, resources, and know-how necessary to perform the Services set out in Article 9 (Scope of Services) hereto and wishes to carry out the same according to the terms and conditions hereof, for the prices set forth in Article 8 (Contract Price, Payment Terms, and Invoices).

3. Introduction

The preface above as well as supplements attached to this Contract, Second Party's proposal, any other supplements or tables the Parties agreed on, general and special conditions, the respective technical

specifications, declarations and undertakings submitted by the Second Party and accepted by the First Party, together with the documents attached hereto shall all constitute an integral part of this Contract.

4. Entire Contract

1. This Contract constitutes the entire agreement between the two Parties and shall include all the agreed terms and conditions.

2. Neither Party shall be bound or responsible of any statement, declaration, promise, solicitation or any understanding, of any kind of nature, except for the provisions of this Contract.

3. No alterations, amendments, or changes to the terms and conditions hereof shall be valid, unless affected by a "Variation Order" signed by the two parties as per Clause 20 (Variations) hereto.

5. Contractor Independence

During the Contractor performance of this Contract, it has to act as an independent Contractor and not as an agent for University. It shall have no right to present any declaration, promise or commitment of any kind on behalf of University, nor shall it bind University towards third parties by any mean.

6. Contract Validity

This Contract shall be valid with effect from the Commencement Date until the Expiry Date, as set out below:

Commencement date (Effective Date):	01 September 2019
Mobilization Completion Date:	Four (4) Months from the Effective date
Service Operation Date:	02 January 2020
Expiry Date:	01 January 2023 (3 years from Service Operation Date)

The Contract shall remain valid for a period of three (3) year from Service Operation Date unless one (1) month notice of termination is given by either Parties as per Clause 15 (Termination of Contract). The Contract may be extended automatically for next two years on yearly basis.

7. Main Point of Contact

1. The main contact person – for the Contractor – within the University will be the Director of Facility Management Department to whom the Contractor is directly responsible.

2. The Director of Facility Management Department may designate other persons within this department to be his representative in certain matters to do with the Contractor's responsibilities in undertaking the Contract.

8. Pricing / Rent

1. The Second Party shall pay to the First Party a fixed 8% share in the total revenue (exclusive of applicable VAT) at end of each month and on such Date every subsequent month throughout the Contract period. However, the first party allows the second party to delay the first six (6) payments until the end of sixth month and all accumulated due payment can be made at the end of the sixth month. The Second party also provides a discount of 20% on the price list for their services.

2. The Second Party shall submit to First Party an approved statement of sales (third party audit report) of the Units in Khalifa University on monthly basis and reimbursement 8% of the total monthly revenue to the First Party as mentioned on point 1 above.

3. The Second Party may not apply any update on items and/or prices without prior authorization by Khalifa University.

4. The Second Party shall collect the charges in advance, directly from the respective staff, student, faculty or individual consuming the services.

5. The First Party shall not be responsible for any unpaid dues owed by any staff, student, faculty or individual, with regard to the Services provided by the Second Party.

6. For catering services ordered by the concerned department of First Party, the Second Party shall invoice the First Party and the payment shall be made by the First Party within 30 days of the non-disputed invoice's submission date.

9. Performance Bond

1. The successful Tenderer shall provide at his own cost, a Performance Bond in the form of an unconditional Bank Guarantee from a UAE registered Bank in favour of Khalifa University, P.O.BOX: 127788, for AED 20,000 not later than 15 days from the date of the Contract and shall be valid from the Contract Effective Date up to 3 months after the Contract Expiry Date (i.e. 39 Months).

2. If the successful Tenderer fails to perform his obligations under the official order issued by the Khalifa University the Bank Guarantee shall be confiscated and encashed and be the acquired right of the Khalifa University without prejudice to the University right to take whatever legal action deemed necessary.

10. Scope of Work

The scope of this project is to provide typical ladies salon and spa services by the Contractor to be located in Khalifa University Abu Dhabi campus as detailed in Appendix B

11. Health & Safety

It is the responsibility of the Services Providers who wish to offer business with or for the favour of the Khalifa University of Science and Technology (KU) to provide and ensure the following mandatory prerequisites (at a minimum) are met during the operation.

1. Identify and comply with all relevant Environment, Health & Safety Standards/ Regulations and any other Legal Requirements applicable to the scope of work, activities and operations and attain valid licenses/ permits and shall maintain all relevant records but not limited to inspections, training, notices and other legal documents from all relevant authorities including, but not limited to, the AD Municipality (ADM), AD Civil Defence, Abu Dhabi Water & Electricity Authority (ADWEA), Abu Dhabi Waste Management Center (ADWMC), Environment Agency Abu Dhabi (EAD etc.) where applicable.

2. Attain an approved Environment, Health and Safety Management System (EHSMS) approved by their relevant EHSMS Sector Regulatory Authorities (SRA) and to provide the Certificates and/or Letters of evidence from their SRA to the KU confirming the state of their compliance with their SRA EHSMS requirements.

3. The Contractor shall carry out the Services in accordance with all applicable Environment, health and safety policies, guidelines, standards, procedures and requirements of all relevant Authorities (whether cited in applicable Laws, the Operating Manual or otherwise) and shall ensure that all premises and equipment is operated in a manner safe to workers, the general public, KU community and the environment within the design limits and the infrastructure.

4. Without prejudice to other provisions of this Clause the Contractor must comply with:

   a. The Environment, Health and Safety Management System of the Emirates of Abu Dhabi (Competent Authority)

b. The Khalifa University's Environment, Health and Safety requirements and all relevant policies (ex. Environment, Health and Safety, Environmental Sustainability, Smoke-Free Environment, Occupational Health and Safety, Food Safety.

c. Abu Dhabi Emirate environmental and sustainability requirements and standards.

d. Any other requirement which the Khalifa University may notify to the Contractor from time to time.

5. All relevant employees of short term and long term contractor shall undergo KU EHS orientation and shall always carry a valid access card issued by the KU.

6. The Contractor shall ensure all electrical equipment shall be grounded with an approved three wire cord and plug. All such equipment shall undergo Portable appliance testing (PAT) and a regular preventive maintenance, as per equipment specification or manufacturer's advice. Machinery with moving parts shall be fitted with appropriate guard.

7. The KU's permit to work (PTW) system shall be followed where ever applicable.

8. If any of the documents referred to in the clause above do not comply with the law, then the Contractor must comply with the Law in performing the Services and amend the relevant document so that it complies with the law.

9. Khalifa University EHSS Department reserve ALL the rights to conduct Second Party Audit, inspections on any of the services provider's works, activities and operations as well as their facilities to ensure the compliance with all the above mentioned requirements which are mandatory and legally binding elements in the contract terms on any of Khalifa University contracted works, activities and operations.

10. The Contractor will not be entitled to any additional fee for complying with this clause.

11. Contractor to provide the following:

    a. Valid licenses from ALL relevant authorities.

    b. Valid certificates (training, medical, health insurance, vehicle permit, equipment maintenance records, etc.) from relevant authorities

    c. EHSMS Certificates/ Letters from relevant EHSMS Sector Regulatory Authorities.

    d. Copy of their approved EHSMS (Soft copy) and other International Management System Certification (ISO 14001, OHSAS 18001, etc.), if any.

12. Penalty for failure to perform

1. In case the Contractor breaks the rules of Safety, Public Health, or the rules of the related Government authorities while executing the services or Contractor's employees does not follow the general rules of the University or do some inappropriate action; the Contractor shall be notified in written letter with a cure period of 30 days for the first case and then he shall be penalized the sum of AED 3,000.00 (Three Thousand Dirhams) and if the same case repeated the Contractor shall be penalized the sum of AED 5,000.00 (Five Thousand Dirhams), besides being fully liable for any infected people who proves their claims with written official reports. The University keeps the right to terminate the Contract and liquidate the Bank Guarantee / Cheque, where there has been 5 such breaches in a rolling 3-month period.

2. The University shall not be obligated to answer any query for imposing liquidated damages.

3. The University may, without prejudice to any other method of recovery, deduct the amount of such damages from any monies which are due or may become due to the Contractor and/or may have recourse to the Bank Guarantee established by Contractor. The payment or deduction of such damages shall not relieve the Contractor from its obligation duly to perform all the other provisions of this Contract.

13. General Requirements

1. **Medical Insurance:**

   The Contractor's personnel should be covered with an insurance scheme in line with Abu Dhabi Labour Ministry regulations.

2. **General Requirements:**

   a. Contractor should not engage any subcontractor to carry out the security management. If required, should provide a formal request to the University and get prior approval.

   b. Any reports should be dealt with strict confidence and should not be shared to any third party.

   c. Contractor should be completely aware of Khalifa University EHS policies and emergency plans.

   d. Contractor should appoint staff as the contractors' focal point with authority and responsibilities over the entire contract.

   e. Contractor should provide complete staff profile for Facility Management Department (FMD) for review.

   f. Contractor should notify FMD for deploying a new staff in replacement due to staff's leave, absence, or other reasons.

14. Subcontractors

1. The Contractor agrees to provide a complete list of names and addresses of all the sub-contractors consultants and any other Contractors of services for the performance of the Contract.

2. The Contractor shall be fully responsible for all work and services performed and all material and equipment supplied by Sub Contractors and for the acts and omissions of Sub Contractors and persons either employed directly or indirectly.

15. Termination of Contract

1. Both parties reserves the right to terminate the Contract with one (1) month notice period if either of them fail to meet their respective responsibilities or services as detailed under this contract

2. KU reserve the right to terminate this Contract if the Contractor's performance, response, behaviour was found unsatisfactory or for any other reason opted by the university administration.

3. Added to the above, if the business/Services conducted by the Contractor undergoes losses for more than three (3) months, the Contractor reserves the right to terminate the contract with a one (1) month notice period.

16. Suspension of work

Khalifa University may at any time, require Contractor to suspend the performance of all and/or portion of Services relative to this Contract and Contractor shall react upon the University request.

17. Conflict of interests

Each party shall exercise reasonable care and diligence to prevent any actions or conditions which could result in a conflict with the best interests of the other Party.

18. Disputes

In cases of disputes that cannot be resolved directly by the University and Contractor, such disputes will be referred for arbitration. If still not solved then Abu Dhabi courts may be approached for settlement.

19. Notices

Any notices to be given under the terms of this Contract shall be served by sending the same by post or by leaving the same at the Administration Office of the Party on whom such notice is to be served.

20. Variations

1. Amendments to any term, condition, or provisions of this Contract can only be effected by executing a Variation Order duly approved by parties thereto. A Variation Order thus executed shall be deemed an integral part of this Contract.
2. The Contractor shall strictly comply with all terms and conditions of this Contract and shall not carry any amendments to this Contract until formally authorized by executing a Variation Order duly approved by Parties thereto.

21. Force Majeure

1. Failure or omission on the part of either Party to observe any of the terms and conditions hereinbefore stipulated shall not give rise to any claim or be deemed a breach of this Contract if such failure or omission arises from any cause reasonably beyond the control of either Party such as fire, war, and natural disasters.
2. Party claiming force majeure shall notify the other Party of such event within fifteen (15) days by email stating the estimated consequences. Onus to prove the occurrence of such events lies on the Party claiming its invocation. If the force majeure lasts more than three (3) months, the University may terminate the Contract without affecting its rights adversely under this Contract.
3. Any extension in the delivery period due to clauses of force majeure shall be by mutual agreement between Parties.

22. Assignment

The Contractor shall not assign this Contract or any part thereof of any benefit or interest herein or there under (other than by a charge in favour of the Contractor's Bankers of any monies due or to become due under this Contract) without the prior written consent of the University.

23. Insurance / Public Liability

The Contractor shall obtain and maintain the following insurance covers at all times during the period of this Contract, at the cost of the Contractor:

a. Workmen's compensation, Employers liability or similar insurance in such amounts as may be sufficient to fulfil liabilities under all applicable laws.

b. Public / third party liability such insurance shall be in the amount of not less than 1,000,000.00 AED for any one occurrence or series of occurrences arising with unlimited number of occurrences.

A copy of this insurance should be provided to Khalifa University.

24. Indemnities

1. Contractor shall notify Khalifa University of any accident occurrence likely to give rise to a claim under Khalifa University's insurances as soon as possible in any event within two (2) working days of such occurrence.

Contractor shall also submit all the claim documents to the Khalifa University as soon as possible and in any event within fifteen (15) days of such occurrence. Whenever applicable, actual settlement of a claim shall be effected by the Insurers directly to Khalifa University's account. Once the claim amount is settled by the Insurers, Khalifa University shall reimburse the Contractor the claim amount due to Contractor as the case may be.

2. In no event shall either party have any liability to the other party or its affiliates or sub-contractors for any special, indirect, exemplary, punitive or consequential loss or damage including damages or claims in the nature of lost revenue, income, profits or investment opportunities.

3. The Contractor shall release, defend, indemnify and hold harmless Khalifa University, its affiliates and its officers, employees, sub-contractors and agents from and against all claims, liabilities, damages, and expenses including, without limitation, attorney's fees and other costs of defines arising out of or incidental to this Contract for:

   a. Any and all injuries to or death or illnesses of any Contractor employees, officers, agents, sub-contractors excluding any claims made by personnel under any workers and/or personnel insurance program maintained by such Contractor, or any third parties and;

   b. Any and all damage to or loss of property of the Contractor, Contractor's employees, officers, agents, sub-contractors or any third party, except where occasioned by, or as the result of, in whole or in part, the gross negligence or wilful misconduct of a Khalifa University indemnities.

4. Without limitation to its obligations and responsibilities under this Contract, the Contractor during the whole period of the Contract from commencement until the expiry date shall at its own expense either insure or cause to be insured for liability for bodily injury by accident or disease including death resulting therefrom sustained by any agent, servant or employee of Contractor or sub-contractors arising out of and in the course of employment; and for all plant and equipment brought onto the Services site by the Contractor or sub-contractors for the use in connection with the Services to their full value against all loss or damage from whatever cause.

25. General conditions

1. The Contractor undertakes that any of their workers, users and their staff shall not steal and / or view and / or tamper with any information and / or documents, whether oral, paper and / or electronic, as well as not to leak or use elsewhere any information, whether confidential or non-confidential to any other party shall be entitled, during the course of this Agreement or after cancellation of this Agreement without notice or warning and without obligation to any compensation or obligations. In the event of violation of this clause, Contractor shall be responsible for any loss or damage to the Khalifa University as a result.

2. The Contractor is solely and fully responsible for what results from work injuries, death or damage of any kind for any of its employees or workers, whether arising from negligence or personal negligence of its agents or employees or its users while working as a responsible public responsibility for their actions towards all staff and workers.

3. The Contractor shall ensure that the all his staff assigned for the provision of services shall have valid labour permits issued by the Ministry of Labour in the UAE and shall be under the sponsorship of the Contractor.

26. Publicity

The Contractor shall not publish or make public any reference to or in connection with the Services without the prior written permission of Khalifa University.

27. Applicable Laws

1. This Contract is governed by the laws applicable in the Emirate of Abu Dhabi and the United Arab Emirates.

2. The headings in this Contract are meant for easy reference only and shall not form part hereof nor shall they have any effect on its interpretation.

3. The Contractor has to obtain all the licenses and permits required under the laws applicable to this Contract.

4. Any contradiction between the provisions hereof and any other documents, previsions hereof shall prevail. In case of any contradiction between the provisions hereof the subsequent provision shall supersede the previous one.

5. Any dispute, case or controversy arising from or in connection with this Contract or any breach hereof shall be referred to the parties for amicable settlement. If the amicable settlement is not possible, the dispute shall be referred to the court of jurisdiction for settlement.

28. Appendices

Appendix A : Price List

Appendix B : Scope of Service

IN WITNESS whereof the Parties hereto have set their respective signatures and seals on the date first written above.

FOR AND ON BEHALF OF FIRST PARTY

Khalifa University of Science and Technology

Signature: _____

By: Dr. Arif Sultan Al Hammadi

Title: Executive Vice President

Date: 21/9/2019

جامعة خليفة
Khalifa University
Procurement & Contracts Dept.

FOR AND ON BEHALF OF SECOND PARTY

Oriental Wellness Spa LLC.

Signature: _____

By: Ms. Meera Mohamed Al Suwaidi

Title: Managing Partner

Date: 18/9/2019

Appendix A: Price List

Ladies Salon and Spa at Khalifa University Female - Gym area

The Contractor shall provide its beauty and spa services to Khalifa University female students and staff at the premises of Khalifa University in Abu Dhabi. The original Services prices are as below, **20% discount will be applied for all Khalifa University premises clients.**

Hair Services:

Services	Price (AED)
Fringe Cut	50
Hair Trim	80
Hair Brushing	50
Hair Blow-drying	100 – 200
Hair Blow-drying / Fair	200 - 350
Hair Style	250 – 350
Hair Colouring	300 – 1000
Hair Roots Colouring	250
Hair Highlight / Lowlight	300 – 1000
Hair Colouring Retouch	300
Hair Henna	200
Loreal Hair Treatments	250
Kerestase Treatments	350
Schwarzkopf Treatments	200
Hair Roots Keratin Treatment	500
Hair Keratin	1000 - 2500
Hair Botox	1000 - 2500
Hair Protein Treatment	1000 - 2500
Hair Collagen Treatment	1000 - 2500

Make Up Services:

Eye Makeup	250
Day Makeup	350
Event Makeup	550

Body Hair Removing Services:

Full Body	300
Half Arms	50

Full Arms	70
Half Legs	75
Full Legs	110
Back	60
Stomach	60
Underarms	50
Upper Lip	25
Chin	30
Chin with neck	75
Full Face	120

Massage Services:

Relaxing Massage		250
Swedish Massage		250
Aromatherapy Massage		270
Thai Massage		270
Balinese Massage		300
Deep Tissue / Sport Massage		300
Hot Stone massage		300
Slimming Massage		320
Thai herbal ball massage		400
Anti-Stress Chair Massage (15-50 min)	70	
Back Massage (20 min)	70	
Neck & Shoulders Massage (20 -70 min)	70	
Reflexology Foot Massage (20-70 min)	70	
Head Massage (20 min)		70
Anti-Stress Massage (45 min)		200

Nails Services:

Classic Manicure & Pedicure	150
Nail Polish Change	30
French	40
Shellac Nail Polish	75
Velvet Nail Polish	50
Caviar Nail Polish	50
Magnetic Nail Polish	50
Colour Changing Nail Polish	20

Crackle Nail Polish	30
Nail Art	5 up
Gel / Powder Acrylic Natural	300
Gel / Powder Acrylic French	350
Refill Full Set Natural	250
Refill Full Set French	280
Gel / Powder Full Set Overlay Natural	200
Gel & Powder Full Set Overlay French	250
Gel & Powder (Per nail) French	35
Silk Nail Extension	300
Gel & Powder Extension Removal	100
Gel Nail Polish Removal	40
Deluxe Treatment	240
Mavala Nail Treatment	100
Callus Foot Treatment	50 up
Paraffin	200
Crystal	160
Tropical Sunset	160
Luminous Pearl	160

Face Care Treatments:

Brightening Rejuvenating Treatment	450
Cold Marine Ritual	350
Express Facial	200
M-Ceutic Treatment	550
Prodige Des Oceans Ritual	800
Prodige Des Oceans Ritual - Face Treatment	600
Purete Marine Ritual	350
Source Marine Ritual	350

Note: Above rates are inclusive of 5% VAT

Appendix B: Scope of Service

Ladies Salon and Spa Services at KU Main Campus

Contract No: C305/P0000/2019/ZAK

1. Objective

The objective from the retail management in Khalifa University is to provide the community with greater products, consumptions, and services to enhance the user's satisfactions.

The scope of this project is to provide typical ladies salon and spa services by the Contractor to be located in Khalifa University Abu Dhabi campus.

2. Required Services:

The contractor shall plan to provide a typical salon and spa services including but not limited to:

- Hair caring and styling
- Spa service
- Nail caring
- Skin caring
- Other services as appropriate and designed by contractor.

3. Services Timing:

3.1. The services shall cover all working days and working hours shall be from 9:00 am until 5:00 PM.

3.2. Any postponement of service if required by contractor for any reason shall be subject to University representative approval.

3.3. Contractor will be provided with the Academic Calendar to be considered in terms of preparations and projections for the services.

4. Services Locations:

4.1. The University allocated a suitable space in the area **Female GYM Area**, Unit registered no. **UNT8302661** with a total area of 155.3 square meters (Outlet Floor Plan available).

4.2. The designated location need to be renovated to meet the identity and the service types of the new concept.

4.3. The location of the proposed outlet located within the KU main campus, therefore, all rules, regulations and policies of the campus security and EHS and other regulations related to the use or stay in any KU campus will be applied all the times.

5. KU Obligations

5.1. The Khalifa University shall provide an access to a 3 phase power outlet of sufficient current capacity as requested by the contractor.

5.2. The Contractor shall ensure power consumption within limits mutually established with the Khalifa University facility department.

5.3. Khalifa University shall provide an access to portable water. Contractor shall ensure water consumption within limits mutually established with Khalifa University facility department.

6. Contractor Obligations

6.1. Contractor is responsible to provide full fit out for the location, any modification, designs, decorations, connections, MEP plans, furniture provisions, equipment's provisions, all these works are the responsibility of the contractor, and however, the contractor will need to obtain the University counterpart approvals for all such works prior to install or to implement.

6.2. Contractor is responsible for the provision of the needed personnel to conduct the assigned services, such as staff, cashier cleaning employee, Etc.

6.3. Contractor shall provide the University with all layouts, plans, graphics, samples, equipment specifications, furniture demo, lighting fixtures, other decoration fixture, and any other requirements needed to set up the concept.

6.4. Contractor shall submit full details of the services to be provided and its prices list.

6.5. Contractor shall submit the concept marketing kits to get it approved from the Authorized section in the University, this to include the concept identity, signage board designs, staff uniform, and any other branding works.

6.6. The University representative reserves the right to ask for immediate replacement of any contractor's staff if found to be unsuitable; incompetent, dishonest, of bad behavior or troublemaker, etc. or any noncompliance with any contract terms and conditions at contractor's own expenses.

6.7. The contractor's staff may be subject to inspection by the security guards while leaving the area of work or the Campus.

6.8. The contractor is bound to provide properly uniformed, competent, and professional. No smoking should be maintained within the campus and the staff should abide strictly to the UAE Health and Safety Regulations.

6.9. Contractor is obligated to provide the services taking utmost care to ensure the safety, hygienic and integrity to the KU and to follow the rules, regulations of related official authorities.

6.10. The contractor shall ensure that each individual of his staff shall not work more 10 hours a day.

6.11. The contractor is obligated to pay the salaries and wages for his employees and providing health insurance for them and provide comprehensive health insurance certificates and disease-free certificate from accredited authorities in the country.

6.12. The University is entitled to request a change to any of contractor subordinate, however the contractor must provide the alternative in (14) day's maximum and shall bear all the expenses involved.

6.13. Contractor is obligated to obtain the required License and all type of approvals required from the Local Authorities and is responsible to abide by their rules and regulations in term of licensing and service provision throughout the Contract period including any alterations and modifications carried out in the allocated space. The contractor shall also be responsible for any fees, fines, levies, etc. for the service payable to any local authorities.

6.14. The contractor is obligated to keep the all prices without change unless approved by the University subordinates.

7. Health and Safety

It is the responsibility of the Services Providers who wish to offer business with or for the favour of the Khalifa University of Science and Technology (KU) to provide and ensure the following mandatory prerequisites (at a minimum) are met during the operation.

7.1. Identify and comply with all relevant Environment, Health & Safety Standards/ Regulations and any other Legal Requirements applicable to the scope of work, activities and operations and attain valid licenses/ permits and shall maintain all relevant records but not limited to inspections, training, notices and other legal documents from all relevant authorities including, but not limited to, the Abu Dhabi Education Council (ADEC), AD Municipality (ADM), AD Civil Defence, AD Health Authority (HAAD), AD Food Control Authority (ADFCA), Abu Dhabi Water & Electricity Authority (ADWEA), Abu Dhabi Waste Management Center (ADWMC), Environment Agency Abu Dhabi (EAD etc.) where applicable.

7.2. Attain an approved Environment, Health and Safety Management System (EHSMS) approved by their relevant EHSMS Sector Regulatory Authorities (SRA) and to provide the Certificates and/or Letters of evidence from their SRA to the KU confirming the state of their compliance with their SRA EHSMS requirements.

7.3. The Contractor shall carry out the Services in accordance with all applicable Environment, health and safety policies, guidelines, standards, procedures and requirements of all relevant Authorities (whether cited in applicable Laws, the Operating Manual or otherwise) and shall ensure that all premises and equipment is operated in a manner safe to workers, the general public, KU community and the environment within the design limits and the infrastructure.

7.4. Without prejudice to other provisions of this Clause the Contractor must comply with:

a. The Environment, Health and Safety Management System of the Emirates of Abu Dhabi (Competent Authority)

b. The Abu Dhabi Education council Environment, Health and Safety Requirements (Sector Regulatory Authority).

c. The Khalifa University's Environment, Health and Safety requirements and all relevant policies (ex. Environment, Health and Safety, Environmental Sustainability, Smoke-Free Environment, Occupational Health and Safety.)

d. Abu Dhabi Emirate environmental and sustainability requirements and standards.

e. Any other requirement which the Khalifa University may notify to the Contractor from time to time.

7.5. All relevant employees of short term and long term contractor shall undergo KU EHS orientation and shall always carry a valid access card issued by the KU.

7.6. The Contractor shall ensure all electrical equipment shall be grounded with an approved three wire cord and plug. All such equipment shall undergo Portable appliance testing (PAT) and a regular preventive maintenance, as per equipment specification or manufacturer's advice. Machinery with moving parts shall be fitted with appropriate guard.

7.7. The KU's permit to work (PTW) system shall be followed where ever applicable.

7.8. If any of the documents referred to in the clause above do not comply with the law, then the Contractor must comply with the Law in performing the Services and amend the relevant document so that it complies with the law.

7.9. The Contractor will not be entitled to any additional fee for complying with this clause.

8. Quality Control

8.1. Contractor shall be responsible for producing a Quality Control and assurance Procedure for implementation. The procedure shall contain inspection report forms to record the quality of the service in accordance with the requirements of the quality and standard service.

8.2. Contractor shall maintain appropriate users engagement, and shall collect the feedback of the users towards the services provide to plan for improving it as needed.

8.3. All relevant policies and Code of Practice of KU shall be adhered to. Such like but not limited to: E-HSS policy and procedures, retail management and administration procedures and guideline, Security Policy and Procedures.